

Court No. - 29

Case :- WRIT - C No. - 17922 of 2021

Petitioner :- Vijendra Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Mohan Kant Baghel, Sunil Kumar Yadav

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Munishwar Nath Bhandari, Acting Chief Justice

Hon'ble Anil Kumar Ojha, J.

Learned counsel for the respondent prays for and get a week's time to seek instruction in the matter.

Let this writ be listed on 16.09.2021 as fresh.

Order Date :- 7.9.2021

VPS

(Anil Kumar Ojha, J.) (Munishwar Nath Bhandari, A.C.J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Deepak Verma, J.

The petitioner has questioned the correctness of notice dated 01.11.2020. In fact, it is a bill issued by Dakshinanchal Vidyut Vitran Nigam Ltd. demanding arrears of electricity dues and putting him to notice that if bill is not paid, electricity supply will be disconnected.

The case of the petitioner is that amount shown as arrears in the said bill is wholly incorrect as his tubewell is not being run since 2014.

Sri S. K. Tripathi, holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing for respondent No.2 submitted that the petitioner has alternative remedy of disputing the correctness of the bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005, which is not disputed by learned counsel for the petitioner.

Accordingly, we refrain from deciding disputed questions of fact and permit the petitioner to raise dispute in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005. In case, the petitioner raises dispute in terms of Clause 6.5, the same shall be decided on merits, expeditiously, preferably within four weeks from the date of receipt of the complaint along with true attested copy of the instant order.

The writ petition is **disposed off** accordingly.

Order Date :- 16.9.2021

Nitin Verma

(Deepak Verma, J.) (Manoj Kumar Gupta, J.)